

CHAPTER 7.

An Act to empower the Minister of Health and the Department of Health for Scotland to make contributions towards expenses to be incurred by local authorities in providing or improving supplies of water in rural localities.

[28th March 1934.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

Government
contribu-
tions
towards
expenses of
local
authorities
for rural
water
supply.

1.—(1) Subject to such conditions as the Treasury may determine, the Minister of Health (in this Act referred to as “the Minister”) may, in any case in which it appears to him to be desirable so to do, undertake to make a contribution towards the expenses to be incurred by a local authority in providing a supply, or in improving an existing supply, of water in a rural locality.

(2) Subject to the provisions of the next succeeding subsection, an undertaking under this section shall provide for the making of the contribution in the form of a lump sum, payable either as a whole on the completion of the works to be executed or of the transaction to be effected for the purposes of the supply, or, in the case of the execution of works, in instalments on the completion of parts of the works.

(3) Where the expenses to be incurred by the local authority are expenses in respect of liabilities arising from time to time under a lease or a hiring agreement or a contract for the supply of water, an undertaking under this section may provide for the making of the contribution in the form of sums payable from time to time, within any period not exceeding twenty years from the date of the undertaking.

(4) The Minister may withhold, or reduce the amount of, a contribution which he has undertaken to make towards the expenses to be incurred by a local

authority in respect of any works or transaction, if it appears to him either—

- (a) that any of the works have been executed in an unsatisfactory manner; or
- (b) that the effectiveness of any of the works is substantially less than as estimated in the proposals submitted to him by the local authority, and that the difference is due to any default, for which the local authority is responsible, in the formulation of the proposals; or
- (c) that there has been any default in the carrying out of the transaction.

(5) Any contributions made by the Minister under this section shall be defrayed out of moneys provided by Parliament, and shall not, in the aggregate, exceed one million pounds.

2. Local authorities, for the purposes of this Act, shall be—

- (a) the council of any borough or urban or rural district;
- (b) the council of a county which is for the time being exercising the functions relating to water supply of any such council as aforesaid by virtue of a resolution under section sixteen of the Local Government Act, 1894, or of an agreement made under subsection (2), or of an order made under paragraph (b) of subsection (3), of section fifty-seven of the Local Government Act, 1929;
- (c) a joint board, or joint committee, constituted under the Public Health Act, 1875, or under a local Act, for the purposes of the provision of a common water supply.

Local
authorities
for the
purposes of
this Act.

56 & 57 Vict.
c. 73.

19 & 20
Geo. 5. c. 17.

38 & 39 Vict.
c. 55.

3. This Act shall apply to Scotland subject to the following modifications, that is to say—

Application
to Scotland.

- (a) references to the Minister of Health shall be construed as references to the Department of Health for Scotland;
- (b) local authorities, for the purposes of this Act, shall be,—
 - (i) the council of any burgh or county;
 - (ii) a combination of any such councils,

60 & 61 Vict.
c. 38.

whether constituted under the Public Health (Scotland) Act, 1897, or otherwise, for the purposes of the provision of a common water supply;

(iii) any board or any trustees or other body constituted under a local Act for the purposes of the provision of a water supply;

(c) the aggregate amount of any contributions made by the Department of Health for Scotland under section one of this Act shall not exceed one hundred and thirty-seven thousand five hundred pounds.

Short title
and extent.

4.—(1) This Act may be cited as the Rural Water Supplies Act, 1934.

(2) This Act shall not extend to Northern Ireland.

CHAPTER 8.

An Act to extend the period in respect of which abatements from pay may be made under the Indian Pay (Temporary Abatements) Act, 1931, subject to a reduction in the percentage to which such abatements are limited.

[28th March 1934.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Extension
of duration,
and reduc-
tion of
limit, of
abatements.
22 & 23
Geo. 5. c. 7.
23 & 24
Geo. 5. c. 7.

1. The period in respect of which abatements from pay may be made under the Indian Pay (Temporary Abatements) Act, 1931, shall be extended so as to expire on the thirty-first day of March, nineteen hundred and thirty-five, and accordingly proviso (a) to subsection (1) of section one of that Act, as amended by the Indian Pay (Temporary Abatements) Act, 1933, shall be further amended by substituting for the words “ thirty-first day